

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 14, 2022, a complaint was received through the "Internal Market Information System" (IMI) with entry registration number REGAGE22e00057787249 at the Spanish Agency for Data Protection (hereinafter, AEPD), submitted to the "Commission Nationale de l'Informatique et des Libertés," the personal data protection authority of France, in which this Agency was informed of a cross-border processing of personal data carried out by NAPPTIVE SOLUTIONS SL, whose main or sole establishment is located in Spain. The reasons for the complaint are as follows:

According to the complainant, they received a commercial prospecting email on October 27, 2022, from the respondent, indicating that they had obtained their contact details by reviewing taxpayer data from open-source projects. The complainant states that they were not provided with information regarding the collection of their contact data prior to receiving this commercial prospecting email.

SECOND: On February 10, 2023, in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and Article 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred by Article 57.1 a), f) and h) of the GDPR to each control authority and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD establishes the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing that involves massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the

admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of Proceedings

In relation to the preliminary actions, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions.”

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, after more than twelve months from the date of admission of the complaint, no agreement to initiate sanctioning proceedings has been issued and notified.

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In this case, the computation of the twelve-month maximum duration of the preliminary proceedings began on February 10, 2023, and is currently still pending completion, therefore they must be declared expired.

IV

Initiation of new investigative proceedings

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this. In any case, the new procedure must fulfill the requirements for allegations, proposal of evidence, and hearing of the interested party.”

In this regard, the National Court, in its ruling of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not pose any obstacle for said entity to initiate or restart other preliminary investigative proceedings regarding the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has proven to be a process of enormous complexity both from a technical point of view and due to the volume of documentation that must be analyzed and studied. Furthermore, new lines of investigation have emerged that need to be evaluated, therefore, the initiated investigation must be completed with new complementary actions.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative actions.

Therefore, in accordance with what has been stated, by the director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to NAPPTIVE SOLUTIONS SL and to the complainant.

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Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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